

Moran 19 — (Greg Moran, November 24, 2019. Accessed online June 20, 2020. “Some criminal justice reform measures taking hold slowly as judges and prosecutors oppose them.” BA from Carleton College and a senior reporter for the San Diego Union-Tribune. He has covered state, federal and appellate courts for 17 years. <https://www.sandiegouniontribune.com/news/courts/story/2019-11-24/some-criminal-justice-reform-measures-taking-hold-slowly-as-judges-and-prosecutors-oppose-them>)--RSP*

For more than half a decade the state Legislature has churned out scores of bills and new initiatives aimed at disassembling a vast criminal justice system built over nearly 40 years on tough-on-crime laws that increased punishments and swelled state prison populations. The blizzard of new laws has put the state at the leading edge of the national criminal justice reform movement that aims at reversing mass incarceration policies by reducing prison sentences, opting for rehabilitation over punishment, and mandating new approaches to policing and prosecution. Yet since the start of the reforms in 2011, when the Legislature passed a law known as public safety realignment that reconfigured the state penal system and kept more non-violent offenders in local jails instead of state prisons, prosecutors and law enforcement groups have opposed many of the changes. That opposition is reflected in how two major criminal justice reform laws are playing out nearly every day in courtrooms far from the legislative hallways of Sacramento. Data gathered by The San Diego Union-Tribune shows that more often than not prosecutors in six major counties — which collectively account for two of every three inmates sent to state prisons — are opposing bids by offenders seeking reduced sentences for accomplice-murder convictions or pre-trial diversion to mental health treatment instead of prosecution. The data show that two ambitious — and controversial — criminal justice reform laws passed by the Legislature are slow to gain much traction in these courthouses, though opposition by prosecutors is not the only reason that’s happening. The felony murder law has been challenged on constitutional grounds in appellate courts, for example. Every case is different and has to be looked at on its own. Also, the final call on whether or not a defendant wins is made by judges. Still criminal justice reform advocates, some of whom worked to pass the laws and are continuing to push for more reforms, say they are not surprised. “This is in many ways the crux of the challenge when it comes to criminal justice reform,” said Lenore Anderson, the president and founder of Californians for Safety and Justice. “Much of the reform is enacted through policy changes in state laws. But, that change in state laws is only as impactful as it is implemented, on the ground.” The Union-Tribune asked district attorneys from San Diego, San Bernardino, Los Angeles, Orange, Sacramento and Riverside for information on the number of cases of people seeking resentencings under Senate Bill 1437, which made changes to the felony-murder law, and Assembly Bill 1810, which allowed for pre-trial mental health diversion. Those six counties account for 65 percent of all inmates imprisoned between 2016 and 2018, according to statistics compiled by the California Department of Corrections and Rehabilitation. They are also among the state’s 10 largest counties in terms of population. Those two laws were selected among the dozens of laws and voter-approved initiatives because they were controversial when passed, addressed longstanding critiques by reform advocates that the system is overly punitive and does not address the mental health needs of defendants. Also, unlike more sweeping reform measures like public safety realignment, both laws allow prosecutors to weigh in and either support or oppose the request from a defendant for the benefits under the new laws and provides a rough gauge on how the reforms are playing out in county courthouses.

The legal battle has largely **halted action** on demands from inmates for resentencing hearings in county courts. It has also given reason for district attorneys to oppose those bids. “There are significant concerns whether the statute itself is constitutional or validly enacted,” Shelly Orio, a spokeswoman for the Sacramento District Attorney’s Office said in an email. “Based on those concerns, our office has filed a constitutional challenge to the statute.” Michele Hanisee, the leader of the Association of Deputy District Attorneys in Los Angeles and an outspoken critic of the law, said that the numbers can be misleading because many inmates who are not eligible are applying, clogging up the system. Cases can also be years old requiring a hunt for records, transcripts and other documents, which takes time.